

		(Code Civ. Proc., §§ 2030.290, subd. (c), 2033.280, subd. (c).) Counsel for Petitioner is ordered to give notice of this ruling.
13.	<i>Petition of Liu</i> <i>2026-01555065</i>	Before the court is the verified petition to preserve evidence before filing action filed on behalf of petition Jeffrey Wayne Liu (Petitioner) by and through his attorney Jane Ho. As more fully set forth below, the petition is DENIED because it suffers from a variety of defects. Code of Civil Procedure section 2035.010, et seq. authorizes a party to file a petition seeking prelawsuit discovery for purposes of perpetuating testimony or preserving evidence. The procedure "shall not [be] employ[ed] . . . for purposes of either ascertaining the possible existence of a cause of action nor a defense to it, or of identifying those who might be made parties to an action not yet filed." (Code Civ. Proc., § 2035.010, subd. (b).) To obtain a court order authorizes prelawsuit discovery, the party must file a verified petition setting forth: "(1) The expectation that the petitioner or the petitioner's successor in interest will be a party to an action cognizable in a court of the State of California. [¶] (2) The present inability of the petitioner and, if applicable, the petitioner's successor in interest either to bring that action or to cause it to be brought. [¶] (3) The subject matter of the expected action and the petitioner's involvement. A copy of any written instrument the validity or construction of which may be called into question, or which is connected with the subject matter of the proposed discovery, shall be attached to the petition. [¶] (4) The particular discovery methods described in Section 2035.020 that the petitioner desires to employ. [¶] (5) The facts that the petitioner desires to establish by the proposed discovery. [¶] (6) The reasons for desiring to perpetuate or preserve these facts before an action has been filed. [¶] (7) The name or a description of those whom the petitioner expects to be adverse parties so far as known. [¶] (8) The name and address of those from whom the discovery is to be sought. [¶] (9) The substance of the information expected to be elicited from each of those from whom discovery is being sought." Code of Civil Procedure section 2035.040 requires the party to serve the petition and a notice of the hearing on the petition "on each natural person or organization named in the petition as an expected adverse party." Service must be made in the same manner as service of a summons, and

		everyone must be given at least 20 days' notice of the hearing. Here, after being instructed to do so by the court, Petitioner personally served the petition on the City of Huntington Beach because Petitioner is seeking records from the Huntington Beach Police Department. Petitioner then served notice of an alleged September 10, 2026 hearing, but Petitioner failed to reserve that date (as the court had instructed) and therefore the hearing was not calendared. The court then set today's hearing date, but Petitioner has failed to give notice of today's hearing to anyone. Furthermore, from the court's reading of Petitioner's filings, Petitioner improperly seeks prelawsuit discovery to ascertain the existence of a cause of action and/or the identity of those who may be made a party to a future lawsuit. Among other things, the petition also fails to set forth the present inability to bring an action, the facts that Petitioner desires to establish, the reasons for desiring to perpetuate or preserve these facts before an action has been filed, the name or a description of those whom the petitioner expects to be adverse parties so far as known, the address of those from whom the discovery is to be sought, and the substance of the information expected to be elicited from each of those from whom discovery is being sought. Any one of these shortcomings is enough to require denial of the petition, but collectively they compel it. The court further questions attorney Ho's authority to bring this petition. The petition alleges Petitioner has been cognitively unresponsive since the alleged collision. If so, how did he authorize attorney Ho to act on his behalf. It appears as though a conservator or some other appropriate legal representative will be necessary. Based on the foregoing, the petition is DENIED. Petitioner's counsel is ordered to give notice of this ruling.
14.	<i>Pinesett vs. Coral Motel</i> <i>2021-01179977</i>	At the time of the hearing, the court will expect an update regarding whether the federal court has made any ruling as to whether the matter should be remanded to this court. As previously mentioned, depending on what information the court receives at the time of the hearing, it may proceed with the order to show cause and determine whether the property at issue should be ordered sold to satisfy the judgment in this case.